Draft law for public discussion

Organic law of the Republic of Belarus on the National Council of Justice of the Republic of Belarus

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Organic law of the Republic of Belarus on the National Council of Justice of the Republic of Belarus

Chapter 1. GENERAL PROVISIONS

Article 1. The National Council of Justice of the Republic of Belarus – the guarantor of judicial independence

1. The National Council of Justice of the Republic of Belarus is responsible for the formation of a highly professional judiciary and ensuring the independence of courts and individual judges.

2. The National Council of Justice of the Republic of Belarus is a legal entity, and its operational expenses are allocated as a separate line in the State Budget of the Republic of Belarus.

Article 2. Legal framework of the National Council of Justice of the Republic of Belarus

1. The status, powers, principles of organization, and operational procedures of the National Council of Justice of the Republic of Belarus are defined by the Constitution of the Republic of Belarus, this Organic Law, and the Organic Law of the Republic of Belarus “On the Judiciary and the Status of Judges.”

2. The National Council of Justice of the Republic of Belarus approves the regulations on the National Council of Justice of the Republic of Belarus, the provisions of which govern procedural matters related to its powers that are not regulated by this Organic Law.

Article 3. Principles of Activity of the National Council of Justice of the Republic of Belarus

The main principles of the activity of the National Council of Justice of the Republic of Belarus are:

- autonomy and independence from the legislative and executive authorities, as well as other judicial bodies;

- prioritization of judicial representation in the formation and exercise of the Council’s powers;

- political neutrality in the activity and non-partisanship of the members of the National Council of Justice;

- financial independence, based on its own budget that ensures sufficient funding for the core activities of the National Council of Justice of the Republic of Belarus;

- binding nature of the decisions made by the National Council of Justice, with the possibility of judicial appeal;

- transparency in its operations.

Article 4. Competence of the National Council of Justice of the Republic of Belarus

1. The National Council of Justice of the Republic of Belarus:

1) submits recommendations for the appointment of judges;

2) makes decisions on violations by judges of incompatibility requirements;

3) ensures the implementation of disciplinary proceedings against judges;

4) reviews complaints against decisions of relevant bodies on holding judges accountable for disciplinary violations;

5) decides on the dismissal of judges;

6) decides on the suspension of judicial powers;

7) grants consent for the detention or arrest of a judge;

8) take measures to ensure the authority of the judiciary and the independence of judges;

9) decide on the transfer of judges from one court to another, as well as on the secondment of judges to another court of the same level and specialisation;

10) exercise other powers as defined by this Organic Law and the Organic Law of the Republic of Belarus “On the Judiciary and the Status of Judges.”

Article 5. Relations with other public authorities

1. In its relations with public authorities, the National Council of Justice of the Republic of Belarus remains independent and is governed solely by the Constitution and laws in its activities.

2. The National Council of Justice of the Republic of Belarus may address the Soim, the President of the Republic of Belarus, and the Government on any issue within its competence, in accordance with the law.

3. The National Council of Justice of the Republic of Belarus cooperates with equivalent bodies in other countries on matters within its jurisdiction.

Article 6. Report of the National Council of Justice of the Republic of Belarus

1. The National Council of Justice of the Republic of Belarus prepares an annual report on its activities during the previous year by 1 February.

2. The report is made public and discussed at the Council of Judges.

3. Copies of the report are sent to the President of the Republic of Belarus and the Soim for informational purposes.

Article 7. Seal and location

1. The National Council of Justice of the Republic of Belarus has its own seal bearing the national emblem of the Republic of Belarus and its official name.

2. The National Council of Justice of the Republic of Belarus is located in the city of Minsk.

Chapter 2. COMPOSITION AND STRUCTURE OF THE NATIONAL COUNCIL OF JUSTICE OF THE REPUBLIC OF BELARUS

Article 8. Composition

1. The National Council of Justice of the Republic of Belarus consists of 12 members.

2. A candidate for the position of a member of the National Council of Justice of the Republic of Belarus must be a citizen of the Republic of Belarus who, at the time of the competition announcement, has reached the age of 35, holds a higher legal education, has at least 10 years of experience in the legal field, and possesses high moral qualities.

A person with a criminal record or who has been held liable for a corruption-related offence cannot be a candidate for the position of a member of the National Council of Justice of the Republic of Belarus.

“Higher legal education” refers to education in the field of "law" obtained at the master’s or specialist’s level at a higher educational institution in the Republic of Belarus or at a foreign educational institution, provided the obtained qualification is recognised in the Republic of Belarus.

3. Six members of the National Council of Justice of the Republic of Belarus are elected by the Congress of Judges from among active and retired judges.

4. Two members of the National Council of Justice of the Republic of Belarus are elected by the Congress of Representatives of Higher Legal Educational and Research Institutions; the Congress of Lawyers of the Republic of Belarus; and the Conference of Representatives of Public Associations in the field of Upholding the Rule of Law.

5. Members of the National Council of Justice of the Republic of Belarus perform their duties on a permanent basis.

6. A member of the National Council of Justice of the Republic of Belarus assumes office after taking the following oath:

“I, (name, surname), solemnly swear to remain loyal to the Republic of Belarus, to honestly and conscientiously perform the duties of a member of the National Council of

Justice of the Republic of Belarus, to ensure through my actions the independence of the judiciary, the formation of a judiciary that meets the requirements of the rule of law, and the observance by judges of the Constitution, laws of the Republic of Belarus, and professional ethics."

7. The oath is administered immediately after the announcement of the decision to elect the member of the National Council of Justice of the Republic of Belarus at the Congress of Judges (or at the Congress of Representatives of Higher Legal Educational Institutions and Research Institutions, the Congress of Lawyers, or the Conference of Representatives of Public Organisations, depending on the appointing body)

Article 9. Procedure for Forming the National Council of Justice of the Republic of Belarus

1. The Congress of Judges of the Republic of Belarus elects members of the National Council of Justice of the Republic of Belarus from among judges (or retired judges) who have expressed their willingness to participate in the competitive selection process.

2. A competition for the position of a member of the National Council of Justice of the Republic of Belarus is announced by the Secretariat of the National Council of Justice of the Republic of Belarus no later than three months before the end of the term of a member of the National Council of Justice of the Republic of Belarus or within one month in the event of an early termination of powers of a member of the National Council of Justice of the Republic of Belarus. The announcement is published on the website of the National Council of Justice of the Republic of Belarus.

3. Persons wishing to participate in the competition submit the following documents within 20 days of the competition's announcement:

a) application;

b) documents confirming higher legal education;

c) documents proving legal work experience;

d) proof of citizenship of the Republic of Belarus;

e) autobiography;

f) declaration of property status and income for the candidate and their family members for the year preceding the competition announcement;

g) any additional documents at the candidate's discretion, demonstrating sufficient qualifications for the position.

4. The Secretariat of the National Council of Justice of the Republic of Belarus verifies, within 15 days from the deadline for the submission of documents, the completeness of documents submitted and whether candidates meet the qualification requirements specified in paragraph 2 of Article 8 of this Law.

5. The list of candidates admitted to the competition is published on the website of the National Council of Justice of the Republic of Belarus no later than five days after the decision is made.

6. If fewer than two candidates per vacancy are admitted to the competition, the Secretariat of the National Council of Justice of the Republic of Belarus immediately announces a new competition.

7. The procedure for convening the Congress of Judges of the Republic of Belarus is determined by the Law on the Judiciary and the Status of Judges.
A candidate for the position of a member of the National Council of Justice of the Republic of Belarus participating in the current competition cannot be a delegate to the Congress.

8. Members of the National Council of Justice of the Republic of Belarus are appointed by the Congress of Judges of the Republic of Belarus through casting ballots.

9. The ballot for the secret vote includes all candidates admitted to the competition, listed in alphabetical order. A candidate is considered elected if they receive the highest number of votes from delegates of the Congress of Judges of the Republic of Belarus, provided the number of votes is no less than the majority of delegates of the Congress of Judges of the Republic of Belarus.

10. If no candidate receives the required number of votes in the first round, a second round of voting is held.

The ballot for the second round includes the two candidates with the highest number of votes from the first round.

A candidate is considered elected in the second round if they receive the highest number of votes from delegates of the Congress of Judges of the Republic of Belarus, provided the number of votes is no less than the majority of delegates of the Congress of Judges of the Republic of Belarus.

11. If no candidate is elected in the second round, the Secretariat of the National Council of Justice of the Republic of Belarus announces a new competition within 10 days.

12. If the competition is announced for two or more vacancies, the election procedure follows the rules outlined in parts 9-10 of this Article, taking into account the following considerations.

Candidates are considered elected in the first round if they receive the highest number of votes from delegates of the Congress of Judges of the Republic of Belarus, provided the number of votes is no less than the majority of delegates of the Congress of Judges of the Republic of Belarus.

If the first round of voting results in failure of any candidate to receive a sufficient number of votes or some vacancies remain unfilled after the first round, a second round of voting is held.

The ballot for the second round of voting includes candidates who received the highest number of votes during the first round of voting (excluding those already elected), in a number that is double the number of vacant positions for members of the National Council of Justice of the Republic of Belarus.

The candidate(s) elected as a result of the repeated voting is (are) the one(s) who received the highest number of votes from the delegates of the Congress of Judges of the Republic of Belarus, provided that this number is not less than the majority of the delegates of the Congress of Judges of the Republic of Belarus.

If, as a result of the repeated voting, the vacancy (vacancies) remains (remain) unfilled, the Secretariat of the National Council of Justice of the Republic of Belarus shall announce a new competition for such vacancy (vacancies) within 10 days.

13. The Congress of Representatives of Higher Legal Educational Institutions and Research Institutions elects members of the National Council of Justice under procedures analogous to those outlined in parts 2-12, with the following specifics.

Each higher legal educational institution and research institution elects three delegates at their academic (scientific) councils.

Institutions eligible to participate must have provided “Law” programmes at the master’s level or higher for at least five years or conducted primary legal research for no less than five years by the competition announcement date.

Procedures for conducting the Congress that are not regulated by this Law are defined by the regulation on conducting of the Congress.

Congress decisions are signed by the chairperson and secretary and submitted to the Secretariat of the National Council of Justice of the Republic of Belarus within 24 hours.

14. The Congress of Lawyers elects members of the National Council of Justice of the Republic of Belarus in accordance with the procedures established in parts 2-12 of this Article, with specifics defined by the Law on Advocacy.

15. The Conference of Representatives of Public Associations elects members of the National Council of Justice of the Republic of Belarus in accordance with the procedures established in parts 2-12 of this Article, with the following specifics.

Each public association that has engaged in chartered activities aimed at upholding the rule of law (human rights protection, anti-corruption activities) for the past five years preceding the competition announcement date may delegate three representatives to participate in the conference.

Article 10. Term of Office

1. The term of office of a member of the National Council of Justice of the Republic of Belarus is four years from the date the decision on their election is adopted.

2. The same person cannot hold the position of a member of the National Council of Justice of the Republic of Belarus for more than two terms.

3. A member of the National Council of Justice of the Republic of Belarus continues to perform their duties until another person is elected to their position, in cases provided for by this Law.

Article 11. Rights of a Member of the National Council of Justice of the Republic of Belarus

1.A member of the National Council of Justice of the Republic of Belarus has the right to:

a) familiarise themselves with materials on issues submitted for consideration by the National Council of Justice of the Republic of Belarus and participate in their discussion;

b) submit motions and present additional materials;

c) request information and documents necessary for the exercise of their powers from government authorities, their officials, institutions, and organisations;

d) propose issues for inclusion on the agenda of the meetings of the National Council of Justice of the Republic of Belarus;

e) participate in decision-making with the right to vote, express a dissenting opinion on adopted decisions, which shall be attached to the respective decision of the National Council of Justice of the Republic of Belarus and published jointly;

f) exercise other rights in accordance with this Law.

Article 12. Duties of a Member of the National Council of Justice of the Republic of Belarus

1. A member of the National Council of Justice of the Republic of Belarus is obliged to:

a) exercise their powers within and in strict compliance with the Constitution and laws of the Republic of Belarus;

b) ensure, through their actions, the independence of the judiciary;

c) not disclose restricted-access information learned in the course of performing their duties;

d) participate in the meetings of the National Council of Justice of the Republic of Belarus and its working bodies, voting either for or against proposed decisions;

e) comply with requirements regarding corruption prevention, conflict of interest, and timely and full declaration of their income and assets;

f) fulfil other obligations arising from this Law and the regulations of the National Council of Justice of the Republic of Belarus.

2. A member of the National Council of Justice of the Republic of Belarus cannot be a deputy of the Soim or a member of representative bodies of local self-governance, work in legislative or executive authorities, hold any other position within the judicial system, engage in entrepreneurial activities, be part of the governing, supervisory, controlling, auditing, or advisory bodies of a business entity, or perform any other paid activity except for scientific, educational, or creative work.

A member of the National Council of Justice of the Republic of Belarus cannot be member of a political party or engage in political activities in any form.

Article 13. Termination of Powers of a Member of the National Council of Justice of the Republic of Belarus

1. The powers of a member of the National Council of Justice of the Republic of Belarus terminate in the following cases:

a) resignation or submission of a request to be relieved of their position at their own request;

b) appointment (election) to another position or transfer to another job with their consent;

c) expiration of their term of office or upon reaching the age of 70;

d) termination of citizenship of the Republic of Belarus;

e) recognition of their incapacity to perform duties due to health reasons, entry into legal force of a court decision declaring them partially or fully incapacitated;

f) engaging in activities incompatible with the position of a judge, committing a disciplinary offense incompatible with the status of a member of the National Council of Justice of the Republic of Belarus, as stipulated by labour legislation and anti-corruption laws;

g) entry into legal force of a criminal conviction against them;

h) death, declaration of death, or recognition as missing by a court decision that has entered into legal force;

i) failure to fulfil the obligation to confirm the legality of the origin of assets subject to declaration.

2. A decision to terminate the powers of a member of the National Council of Justice of the Republic of Belarus is made at a meeting of the National Council of Justice of the Republic of Belarus by no fewer than 8 votes of members of the National Council of Justice of the Republic of Belarus. The member regarding whom the decision is being made does not participate in the vote.

Article 14. Guarantees for Members of the National Council of Justice of the Republic of Belarus

1. During their tenure, members of the National Council of Justice of the Republic of Belarus who are judges are considered seconded to the National Council of Justice of the Republic of Belarus. Members of the National Council of Justice of the Republic of Belarus, except for self-employed individuals and employees of private institutions and organisations, retain their previous place of work.

2. The remuneration of a member of the National Council of Justice of the Republic of Belarus is set at the level of a remuneration of a judge of the Supreme Court of the Republic of Belarus.

Additional remuneration is provided for performing the role of the Chairperson of the National Council of Justice of the Republic of Belarus established at 30% of their base

salary, for the Deputy Chairperson - at 15% of their base salary; for the Chairperson of a panel - at 10% of their base salary and the Secretary of a panel – at 10% of their base salary.

3. A member of the National Council of Justice of the Republic of Belarus is entitled to an annual leave as stipulated for judges by the Law of the Republic of Belarus "On the Judicial System and the Status of Judges", regardless of their status prior to being elected to the National Council of Justice of the Republic of Belarus.

4. For judges, the period of service as a member of the National Council of Justice of the Republic of Belarus is included in the length of service required for entitlement to a longevity allowance.

5. The remuneration for members of the National Council of Justice of the Republic of Belarus is paid from the state budget of the Republic of Belarus within the general budget allocated for the operation of the National Council of Justice of the Republic of Belarus.

6. The life and health of members of the National Council of Justice of the Republic of Belarus are protected by law.

Article 15. Chairperson of the National Council of Justice of the Republic of Belarus

1. The Chairperson of the National Council of Justice of the Republic of Belarus is elected from among the members of the National Council of Justice of the Republic of Belarus who are neither current nor retired judges.

2. The term of office of the Chairperson of the National Council of Justice of the Republic of Belarus is four years.

3. The election of the Chairperson of the National Council of Justice of the Republic of Belarus takes place at a meeting of the National Council of Justice of the Republic of Belarus with the participation of no fewer than 10 members of the National Council of Justice of the Republic of Belarus.

The right to nominate candidates belongs to all members of the National Council of Justice of the Republic of Belarus, including the right to self-nominate.

A candidate is considered elected by secret ballot if they receive the highest number of votes, but no fewer than 7 votes from the members of the National Council of Justice of the Republic of Belarus.

If three or more candidates are included on the ballot and none receives the required number of votes in the first round of voting, a second round is held. In the second round, the two candidates with the highest number of votes in the first round are included on the ballot. The candidate receiving the highest number of votes in the second round, but no fewer than 6 votes of members of the National Council of Justice of the Republic of Belarus, is considered elected.

4. The Chairperson of the National Council of Justice of the Republic of Belarus may be removed from office at the initiative of no fewer than 4 members of the National Council of Justice of the Republic of Belarus.

The decision on removal is made by no fewer than 7 members of the National Council of Justice of the Republic of Belarus during a meeting chaired by a member of the National Council of Justice of the Republic of Belarus elected by a majority of members of the National Council of Justice of the Republic of Belarus present.

5. Upon the proposal of the Chairperson of the National Council of Justice of the Republic of Belarus, a Deputy Chairperson of the National Council of Justice of the Republic of Belarus is elected from among the members of the National Council of Justice of the Republic of Belarus.

The Deputy Chairperson of the National Council of Justice of the Republic of Belarus is elected during a meeting of the National Council of Justice of the Republic of Belarus by open voting with no fewer than 7 votes from the members of the National Council of Justice of the Republic of Belarus.

The Deputy Chairperson of National Council of Justice of the Republic of Belarus replaces the Chairperson of the National Council of Justice of the Republic of Belarus in their absence and performs the duties of the Chairperson of the National Council of Justice of the Republic of Belarus upon assignment of the latter.

Article 16. Powers of the Chairperson of the National Council of Justice of the Republic of Belarus

1. The Chairperson of the National Council of Justice of the Republic of Belarus exercises the following powers:

a) convenes and presides over meetings of the National Council of Justice of the Republic of Belarus;

b) ensures the general management of the activities of the Secretariat of the National Council of Justice of the Republic of Belarus and the Higher School of Judges of the Republic of Belarus through the heads of these entities;

c) signs decisions adopted by the National Council of Justice of the Republic of Belarus;

d) represents the National Council of Justice of the Republic of Belarus in relations with other government bodies, organisations, institutions, international organisations, and foreign authorities (institutions, organisations);

e) disposes of budgetary funds allocated for the activities of the National Council of Justice of the Republic of Belarus upon the proposal of the Head of the Secretariat of the National Council of Justice of the Republic of Belarus;

f) performs other powers as provided for by this Law.

Article 17. Panels of the National Council of Justice of the Republic of Belarus

1. For the preliminary consideration of issues related to the disciplinary liability and appointment of judges, the National Council of Justice of the Republic of Belarus establishes from among its members:

a) the Disciplinary Panel;

b) the Personnel Panel.

2. Each panel consists of 6 members.

Members of each panel elect a Chairperson and a Secretary from among themselves. The Chairperson and Deputy Chairperson of the National Council of Justice of the Republic of Belarus cannot be elected as Chairperson or Secretary of a panel.

3. Decisions in a panel are made by no fewer than 4 votes of its members.

Article 18. State Examination Commission for the Selection of Judges

1. To select candidates for judicial positions, the National Council of Justice of the Republic of Belarus establishes the State Examination Commission for the Selection of Judges.

The State Examination Commission for the Selection of Judges operates on a sessional basis during the period when the competitive selection process is held.

2. Remuneration for the members of the State Examination Commission for the Selection of Judges is provided under civil-law contracts and funded from the budget allocated for the National Council of Justice of the Republic of Belarus.

3. Members of the State Examination Commission for the Selection of Judges may include law professors, retired judges, and representatives of public organisations who meet the requirements outlined in the second paragraph of Part 15, Article 9 of this Law.

4. The procedure for selecting members of the State Examination Commission for the Selection of Judges and other matters concerning its operations are defined in the Regulation on the State Examination Commission for the Selection of Judges, approved by the National Council of Justice of the Republic of Belarus.

5. The organisational support for the activity of the State Examination Commission for the Selection of Judges is carried out by the Department for Supporting the Activities of the State Examination Commission for the Selection of Judges within the Secretariat of the National Council of Justice of the Republic of Belarus.

Article 19. Higher School of Judges of the Republic of Belarus

1. The Higher School of Judges of the Republic of Belarus is an institution under the National Council of Justice of the Republic of Belarus, primarily responsible for the professional training of candidates for professional judicial positions, organising training courses to improve the qualifications of sitting judges (as well as their assistants and

court staff), and developing methodological recommendations for enhancing the administration of justice.

2. The Higher School of Judges of the Republic of Belarus is a legal entity.
Its funding is provided within the budget allocated for the National Council of Justice of the Republic of Belarus.

3. The Rector of the Higher School of Judges is appointed and dismissed by the National Council of Justice of the Republic of Belarus upon the recommendation of the Chairperson of the National Council of Justice of the Republic of Belarus. The term of office for the Rector is five years.

4. The activities of the Higher School of Judges of the Republic of Belarus are not considered educational activities under the legislation on higher education and do not require special licensing.

5. The Higher School of Judges of the Republic of Belarus operates in accordance with the Constitution of the Republic of Belarus, this Organic Law, the Law on the Judiciary and the Status of Judges, and the Charter of the Higher School of Judges of the Republic of Belarus. The Charter is approved by the National Council of Justice of the Republic of Belarus upon the submission of the Chairperson of the National Council of Justice of the Republic of Belarus.

Chapter 3. SUPPORT FOR THE ACTIVITIES OF THE NATIONAL COUNCIL OF JUSTICE OF THE REPUBLIC OF BELARUS

Article 20. Financing the Activities of the National Council of Justice of the Republic of Belarus

1. The National Council of Justice of the Republic of Belarus is funded from the state budget within the limits approved annually by the law on the state budget, based on the necessary funding amount of the Council as submitted by the Council.

2. The draft budget (estimate) of the National Council of Justice of the Republic of Belarus is approved at a meeting of the National Council of Justice of the Republic of Belarus upon the proposal of the Head of the Secretariat of the National Council of Justice of the Republic of Belarus, agreed with the Chairperson of the National Council of Justice of the Republic of Belarus.

3. The terms and procedures for remunerating the Chairperson of the National Council of Justice of the Republic of Belarus and members of the National Council of Justice of the Republic of Belarus elected from among judges are established by legislation on the wage system in the public sector, taking into account the specifics provided for by this Law.

Article 21. Secretariat of the National Council of Justice of the Republic of Belarus

1. The organisational and administrative support for the activities of the National Council of Justice of the Republic of Belarus and its specialised bodies is provided by the Secretariat of the National Council of Justice of the Republic of Belarus, headed by the Head of the Secretariat of the National Council of Justice of the Republic of Belarus.

2. The procedures governing the activities of the Secretariat of the National Council of Justice of the Republic of Belarus and its structural divisions are determined by this Law and by the regulations approved by the National Council of Justice of the Republic of Belarus.

3. The Head of the Council Secretariat is appointed to and dismissed from their position by the National Council of Justice of the Republic of Belarus.

Article 22. Structure of the Secretariat of the National Council of Justice of the Republic of Belarus

1. The Secretariat of the National Council of Justice of the Republic of Belarus consists of the following units:

- the Main Department of Judicial Self-Governance;
- the Disciplinary Inspectors Department;
- the Administrative Department;
- the Department for Supporting the Activities of the State Examination Commission for the Selection of Judges.

2. The Main Department of Judicial Self-Governance of the Secretariat of the National Council of Justice of the Republic of Belarus provides assistance to the members of the National Council of Justice of the Republic of Belarus and its specialised bodies in performing their functions.
Within the Main Department of Judicial Self-Governance, departments, divisions, and services can be established.

1. The Administrative Department of the Secretariat of the National Council of Justice of the Republic of Belarus ensures the administrative and economic functioning of the National Council of Justice of the Republic of Belarus.
The Administrative Department includes the following:

- Division for Material and Financial Support;
- Division for Information Technology;
- Archive;
- Library;
- Other divisions necessary for the activities of the National Council of Justice of the Republic of Belarus.

Article 23. Disciplinary Inspectors Department

1. A disciplinary inspector may be a citizen of the Republic of Belarus with a higher legal education, at least five years of legal experience, and high moral qualities.

2. Disciplinary inspectors of the National Council of Justice of the Republic of Belarus are appointed for five years through an open competitive process.

3. The procedure for holding a competition for the position of disciplinary inspector is determined by regulations approved by the National Council of Justice of the Republic of Belarus.

4. Disciplinary inspectors carry out their activities within the Disciplinary Inspectors Department of the Secretariat of the National Council of Justice of the Republic of Belarus.

5. The Head of the Disciplinary Inspectors Department is appointed by the National Council of Justice of the Republic of Belarus from among the disciplinary inspectors for a term of three years, upon the submission of the Chairperson of the National Council of Justice of the Republic of Belarus.

6. The Head of the Secretariat of the National Council of Justice of the Republic of Belarus provides administrative supervision over the Disciplinary Inspectors Department solely concerning labour discipline.

In matters of compliance with procedural requirements for conducting disciplinary proceedings, the Disciplinary Inspectors Department reports to the Chairperson of the National Council of Justice of the Republic of Belarus.

Article 24. Staff and Remuneration of the Secretariat of the National Council of Justice of the Republic of Belarus

1. The staff of the Main Department of Judicial Self-Governance of the Secretariat comprises civil servants governed by the Law on Civil Service, with their remuneration governed by applicable legislation.

The salary of a disciplinary inspector is 50% of the remuneration of a member of the National Council of Justice of the Republic of Belarus.

The Head of the Disciplinary Inspectors Department receives an additional allowance of 30% of the salary of a disciplinary inspector.

2. The staff of the Administrative Department of the Secretariat of the National Council of Justice of the Republic of Belarus includes civil servants governed by the Law on Civil Service, as well as contract employees performing auxiliary functions, subject to labour legislation, with their remuneration regulated by applicable laws.

3. The staffing schedule of the Council Secretariat is approved by the National Council of Justice of the Republic of Belarus.

4. The staff of the Secretariat of the National Council of Justice of the Republic of Belarus is required to observe their official duties, professional ethics, and confidentiality of information obtained in the course of their official duties.

5. The staff of the Secretariat of the National Council of Justice of the Republic of Belarus is held accountable for failure to perform official duties and for disclosing confidential service information in accordance with law.

Article 25. Records Management

1. Records management for the Council is carried out by the staff of the Secretariat of the National Council of Justice of the Republic of Belarus.

2. Meetings of the National Council of Justice of the Republic of Belarus are documented using video or audio recording and are also protocolled.

3. The protocol of a meeting of the National Council of Justice of the Republic of Belarus includes records of the attendance of members of the National Council of Justice of the Republic of Belarus and other participants, items submitted for voting, voting results, and the decision adopted.

4. The protocol of the meeting of the National Council of Justice of the Republic of Belarus is prepared within three days and signed by the presiding officer and the secretary.

Chapter 4. ORGANIZATION OF ACTIVITIES OF THE NATIONAL COUNCIL OF JUSTICE OF THE REPUBLIC OF BELARUS

Article 26. Meetings of the National Council of Justice of the Republic of Belarus

1. The National Council of Justice of the Republic of Belarus, as a collegial body, exercises its powers at plenary meetings.

2. Meetings of the National Council of Justice of the Republic of Belarus are considered valid if at least two-thirds of its members holding office are present, taking into account the provisions outlined in Paragraph 1 of Article 30 of this Law.

3. Persons whose cases are under consideration must be invited to meetings of the National Council of Justice of the Republic of Belarus, except in cases involving the detention or arrest of a judge, as specified in Article 122 of the Constitution of the Republic of Belarus.

Article 27. Convening Meetings of the National Council of Justice of the Republic of Belarus

1. Meetings of the National Council of Justice of the Republic of Belarus are convened at the initiative of its Chairperson or their deputy, on the grounds and in accordance with the procedures established by this Law.

2. Meetings of the National Council of Justice of the Republic of Belarus may also be convened at the initiative of no fewer than three of its members.

3. The date, time, location, agenda of the meeting, draft decisions to be adopted, and supporting materials are communicated to members of the National Council of Justice of the Republic of Belarus no later than three days prior to the meeting, except in cases where decisions are made to exercise the powers specified in Paragraph 6 of Part 1 of Article 4 of this Law.

Article 28. Procedure for Reviewing Matters by the National Council of Justice of the Republic of Belarus

1. The review of matters to be decided at a meeting of the National Council of Justice of the Republic of Belarus begins with a report by the Chairperson of the National Council of Justice of the Republic of Belarus or a designated member of the National Council of Justice of the Republic of Belarus responsible for the preliminary study and preparation of the respective matter.

2. After that, persons invited to the meeting of the National Council of Justice of the Republic of Belarus are heard, and the necessary documents and materials are examined.

3. Consideration of oral (written) objections or arguments presented by a judge whose activity is under review by the Council is obligatory.

4. The National Council of Justice of the Republic of Belarus makes decisions by open voting, requiring a majority of the votes of members present, except as otherwise specified by this Law. In the event of equal votes of present members of the NCJ participating in the voting, the NCJ Chairperson's vote is decisive. If the NCJ Chairperson does not participate in the vote, equal votes result in the decision being deemed unadopted.

5. A reasoned decision is prepared within five days and signed by the Chairperson of the National Council of Justice of the Republic of Belarus (or their deputy).

6. If any member of the National Council of Justice of the Republic of Belarus expresses a dissenting opinion, it must be immediately announced and published alongside the decision of the National Council of Justice of the Republic of Belarus.

Article 29. Appeals against Decisions of the National Council of Justice of the Republic of Belarus

Decisions of the National Council of Justice of the Republic of Belarus may be appealed through judicial proceedings.

Article 30. Disqualification and Self-Disqualification of a Member of the National Council of Justice of the Republic of Belarus

1. A member of the National Council of Justice of the Republic of Belarus may not participate in the review of a matter and is subject to disqualification if there are circumstances that preclude their participation or that raise doubts about their impartiality.
If such circumstances exist, the member of the National Council of Justice of the Republic of Belarus is required to declare their self-disqualification.

2. For the same reasons, disqualification may be requested by the individual whose case is under consideration or by the individual who submitted materials for review.

3. A request for disqualification must be substantiated and presented in writing or verbally.

4. A member of the National Council of Justice of the Republic of Belarus in relation to whom a disqualification request is made shall not participate in the vote on the disqualification request.

Chapter 5. SPECIFICS OF EXERCISING POWERS RELATED TO THE FORMATION OF THE JUDICIARY AND APPOINTMENT OF JUDGES

Article 31. Review of Judicial Appointments by the National Council of Justice of the Republic of Belarus

1. Based on the results of a competitive selection process, the National Council of Justice of the Republic of Belarus makes decisions on judicial appointments, taking into account the ranking of candidates who participated in the selection.

2. For each candidate applying for a judicial appointment, the Chairperson of the Personnel Panel of the National Council of Justice of the Republic of Belarus, using automated mechanisms, designates a rapporteur from among the members of the Personnel Panel of National Council of Justice of the Republic of Belarus (hereinafter referred to as rapporteur).

3. The rapporteur prepares a draft conclusion based on the results of the competitive selection and special verification assessing the candidate's compliance with the requirements for the proposed position.

4. The draft conclusion prepared by the rapporteur is approved by the Personnel Panel of the National Council of Justice of the Republic of Belarus and submitted for consideration by the National Council of Justice of the Republic of Belarus.

5. The candidate whose judicial appointment is under consideration is invited to the consideration of this matter at the meeting of the National Council of Justice of the Republic of Belarus.

If the candidate fails to appear due to valid reasons, the consideration of the matter is postponed. The decision to postpone is made by the National Council of Justice of the Republic of Belarus at its meeting.

6. When considering a judicial appointment, the conclusion prepared regarding the candidate whose judicial appointment is being considered is presented first.
Following this, the candidate is given the opportunity to speak, including presenting their arguments, evidence, or objections concerning the facts and conclusions stated in the conclusion.

7. Decisions on judicial appointments are made by open voting.

A decision is deemed adopted if at least seven members of the National Council of Justice of the Republic of Belarus vote in favour.

Chapter 6. SPECIFICS OF THE IMPLEMENTATION OF POWERS RELATED TO TAKING MEASURES FOR PREVENTING VIOLATIONS OF JUDICIAL INDEPENDENCE AND IMMUNITY AND INTERFERENCE IN THE ADMINISTRATION OF JUSTICE

Article 32. Review of Issues Related to Taking Measures for Preventing Violations of Judicial Independence and Immunity and Interference in the Administration of Justice

1. Complaints regarding violations of judicial independence and immunity or interference in the administration of justice are submitted to the National Council of Justice of the Republic of Belarus no later than two months from the occurrence of the actions (or decisions) aimed at compromising judicial independence or immunity that are considered interference in the administration of justice by the judges.

2. The text of the complaint is published on the website of the National Council of Justice of the Republic of Belarus, except for information deemed confidential.

3. Complaints are reviewed within 30 working days from the date of their receipt.

4. The National Council of Justice of the Republic of Belarus may summon officials, request documents, and access confidential, state, or official information to fully examine the complaint.

5. If a complaint is deemed valid, the National Council of Justice of the Republic of Belarus issues a submission to the responsible official, authority, organisation, institution, or association, identifying the violations of judicial independence or interference. The submission includes requirements to cease unlawful actions or rectify the violations.

The addressee of the submission is required to report to the National Council of Justice of the Republic of Belarus actions taken to comply with the demands stated in the submission within three working days.

6. If signs of a criminal offence are identified during the consideration of the complaint, the National Council of Justice of the Republic of Belarus forwards the materials to law enforcement authorities.

7. Based on results of the complaint consideration, the National Council of Justice of the Republic of Belarus may address public officials and governmental authorities requesting disciplinary measures to be taken against individuals who with their actions (decisions) have violated judicial independence (immunity) or interfered with administration of justice by judges.

8. Within 10 working days after deciding on the complaint on the substance (receiving a response to the submission), the National Council of Justice of the Republic of Belarus informs the complainant about the results of the complaint consideration (measures taken within complaint consideration)

Chapter 7. SPECIFICS OF THE IMPLEMENTATION OF POWERS RELATED TO ORGANISING JUDICIAL TRAINING AND PROFESSIONAL DEVELOPMENT

Article 33. Powers of the National Council of Justice of the Republic of Belarus in the field of judicial training and professional development

1. In the field of judicial training and professional development, the National Council of Justice of the Republic of Belarus:

a) approves the concept of initial and continuous judicial training and provides recommendations for its implementation plan;

b) approves the Regulation on Entrance Examinations to the Higher School of Judges, the Regulation on the Educational Process, and the Regulation on the Competition to Select Teaching Staff for the Higher School of Judges.

c) sends judges to participate in professional development events, both within Belarus and abroad;

d) annually, by 1 March, determines the number of judicial training positions at the Higher School of Judges for the next academic year.

Chapter 8. SPECIFICS OF THE IMPLEMENTATION OF POWERS RELATED TO THE JUDICIAL PERFORMANCE EVALUATION

Article 34. Objectives of judicial performance evaluation

1. Judicial performance evaluation is conducted with the aim of assessing the professional knowledge and skills of judges, their ability to apply theoretical knowledge in practice, and to participate in the administrative activity of the court and organise this activity, establishing strengths and weaknesses in judges' activities, and encouraging judges to advance their professional capacity.

2. Results of judicial performance evaluations are used to:

1) organise appropriate training of judges (determining learning directions, designing and elaborating training programmes for judges, selection of educational approaches, etc.).

2) decide on promotions or demotions of judges.

3) encourage professional development of judges.

3. The principle of judicial independence must not be violated during the judicial performance evaluation.

Article 35. Types of judicial performance evaluation

1. Judicial performance evaluations include:

1) regular evaluations.

2) extraordinary evaluations.

2. Primary judicial performance evaluation is undertaken three years after a judge is appointed.

Subsequent judicial performance evaluations are undertaken every five years until the judge reaches the mandatory retirement age.

Extraordinary judicial performance evaluation is conducted upon the judge's own request or after repeated disciplinary offences within three years.

Extraordinary judicial performance evaluation is also conducted when the promotion of the judge is under consideration, unless the last regular or extraordinary performance evaluation of the judge occurred within the past three years.

Article 36. Procedure for judicial performance evaluation

1. During their judicial performance evaluation, both professional activities and personal qualities of the judges are comprehensively assessed.

2. The judicial performance evaluation procedure is established by the National Council of Justice of the Republic of Belarus.

3. The judicial performance evaluation procedure must ensure thorough, objective assessment of the professional activity of judges and include:

1) periodic nature of judicial performance evaluations,

2) exhaustive grounds for conducting extraordinary judicial performance evaluations;

3) a list of entities entitled to initiate extraordinary judicial performance evaluations;

4) the scope of judicial performance evaluations;

5) the methodology, duration, and procedure for judicial performance evaluation;

6) criteria for judicial performance evaluations;

7) methods of obtaining the data necessary for judicial performance evaluation.

4. Preliminary preparation for evaluations is handled by the Personnel Panel of the National Council of Justice of the Republic of Belarus.

Final decisions on the judicial evaluation is made by the National Council of Justice of the Republic of Belarus.

5. Evaluations consider quantitative and qualitative indicators of judicial performance, professional and personal attributes, as well as jurisdictional and non-jurisdictional activities.

6. Requests for extraordinary evaluations can be initiated by:

a) court chairpersons (or higher court officials).

b) the judge undergoing an evaluation.

Article 37. Use of judicial performance evaluation results

1. In the event that circumstances warranting disciplinary action against a judge are identified during the judidicial performance evaluation, the National Council of Justice of the Republic of Belarus decides on the application of disciplinary measures to the judge.

2. In such a case, the consideration and decision regarding the disciplinary liability of the judge are carried out by the National Council of Justice in compliance with the requirements set forth in parts 2–6 of Article 42 of this Law (except for the requirement for the prior preparation of a decision by the Disciplinary Panel of the National Council of Justice of the Republic of Belarus on this matter).

Chapter 9. SPECIFICS OF EXERCISING POWERS RELATED TO DISCIPLINARY PROCEEDINGS AND MEASURES FOR MAINTAINING HIGH STANDARDS OF JUDICIAL ETHICS

Article 38. General Requirements and Procedure for Filing a Complaint

1. A complaint regarding decisions, actions (or inactions) of a judge may be filed within three months from the date of the decision, the action, or the failure to perform legally prescribed actions (hereinafter referred to as the commission of a disciplinary offense).

2. The complaint may be submitted either in writing or by filling out a special electronic form on the website of the National Justice Council of the Republic of Belarus.

3. The complaint must include the following:

a) the surname, name and patronymic name, place of registration, contact phone numbers, and email address of the complainant;

b) details about the judge who, according to the complainant, committed the disciplinary offense;

c) a description of the alleged disciplinary offense and factual data confirming its occurrence;

d) the legal provisions (or an act regulating judicial ethics) that, in the complainant's opinion, were violated by the judge;

e) the complainant's signature (or an electronic digital signature if the complaint is filed via the electronic form) and the date of submission.

If necessary, materials confirming the disciplinary offense should be attached to the complaint (scanned copies must be attached when using the electronic form).

Article 39. Procedure for the Preliminary Review of Complaints

1. Complaints are registered in the Secretariat of the National Justice Council of the Republic of Belarus and forwarded to the Head of the Disciplinary Inspectors Department.

2. The Head of the Disciplinary Inspectors Department, using an automated complaint distribution mechanism, assigns the complaint to a disciplinary inspector.

3. During the distribution of complaints, the Head ensures compliance with the principle of preventing conflicts of interest in the review process.

4. If the complaint does not meet the requirements set out in part 3 of Article 38 of this Law, it will remain without further motion by decision of the disciplinary inspector, and the complainant will be notified within three days of the decision.

5. The disciplinary inspector responsible for the preliminary review of the complaint:

a) verifies the facts stated in the complaint;

b) requests necessary materials, including those containing confidential information;

c) interviews individuals with information necessary for a thorough and objective review of the complaint;

d) requests a written response from the judge whose decision (action/inaction) is being appealed.

6. The preliminary review of the complaint must be completed within two months from the date of its registration.

7. Based on the results of the preliminary review, if signs of a disciplinary offense are identified, the disciplinary inspector prepares a conclusion to initiate disciplinary proceedings on the complaint.

8. If the disciplinary inspector concludes that no signs of a disciplinary offense are present in the actions of the judge, a conclusion is prepared to dismiss the complaint.

9. During the preliminary review, any interference (including giving mandatory instructions) in the work of the disciplinary inspector by officials of the Secretariat of the National Justice Council of the Republic of Belarus or members of the National Justice Council of the Republic of Belarus is prohibited.

Article 40. Initiation of Disciplinary Proceedings

1. The disciplinary inspector's conclusion following the review of the complaint, along with the collected materials, is submitted via the Head of the Disciplinary Inspectors Department to the Disciplinary Panel of the National Council of Justice of the Republic of Belarus.

2. The Chairperson of the Disciplinary Panel of the National Council of Justice of the Republic of Belarus, using automated distribution mechanisms, assigns the complaint to one of the members of the Disciplinary Panel of the National Council of Justice of the Republic of Belarus (hereinafter referred to as the rapporteur).
When distributing complaints, the requirements of the legislation regarding the inadmissibility of conflicts of interest in their consideration must be observed.

3. After reviewing the disciplinary inspector's conclusion and the collected materials, the rapporteur submits within one month a draft decision to the Disciplinary Panel of the National Council of Justice of the Republic of Belarus on whether to initiate disciplinary proceedings on the complaint or to dismiss it.

4. A decision to dismiss the complaint is made if there are no indications of a disciplinary offence in the actions of the judge.

5. A decision by the Disciplinary Panel of the National Council of Justice of the Republic of Belarus to dismiss the complaint may be appealed directly to the National Council of Justice of the Republic of Belarus within ten days of such a decision.

6. The National Council of Justice of the Republic of Belarus may overturn the decision of the Disciplinary Panel of the National Council of Justice of the Republic of Belarus and issue a decision to initiate disciplinary proceedings based on the complaint.

Article 41. Examination of the Complaint by the Disciplinary Panel of the National Council of Justice of the Republic of Belarus

1. Within one month after the decision to initiate proceedings on the complaint, the rapporteur conducts a review and verification of the collected materials and prepares a draft decision for the National Council of Justice of the Republic of Belarus based on the results of the complaint examination.

2. The rapporteur is authorised to:

a) request necessary materials, including those containing confidential information;

b) interview individuals possessing information required for a thorough and objective examination of the complaint;

c) seek expert opinions on issues related to the complaint.

3. Based on the results of the complaint examination, the rapporteur may propose to adopt a draft decision regarding:

a) the rejection of the complaint;

b) the satisfaction of the complaint and imposition of disciplinary measures on the judge as provided by the Law on the Status of Judges.

4. The draft decision must be considered by the Disciplinary Panel of the National Council of Justice of the Republic of Belarus within 14 days of its submission.

5. The Disciplinary Panel of the National Council of Justice of the Republic of Belarus may either approve the draft decision or propose its own draft decision to the National Council of Justice of the Republic of Belarus.

6. The decision of the Disciplinary Panel of the National Council of Justice of the Republic of Belarus is forwarded within three days after its approval to the Chairperson of the National Council of Justice of the Republic of Belarus for consideration by the National Council of Justice of the Republic of Belarus.

Article 42. Adoption of a Decision by the National Council of Justice of the Republic of Belarus on a Complaint

1. The National Council of Justice of the Republic of Belarus examines the decision of the Disciplinary Panel of the National Council of Justice of the Republic of Belarus and the complaint on its merits within one month of receiving the decision of the Disciplinary Panel of the National Council of Justice of the Republic of Belarus.

2. The complainant and the judge whose decisions, actions, or inaction are being challenged are invited to attend the meeting of the National Council of Justice of the Republic of Belarus.

Their absence does not preclude the consideration of the complaint.

3. The materials collected during the examination of the complaint and the decision of the Disciplinary Panel of the National Council of Justice of the Republic of Belarus are presented to the members of the National Council of Justice of the Republic of Belarus by the rapporteur.

4. The complainant and the judge whose decisions, actions, or inaction are being challenged have the right to:

a) provide explanations regarding the facts under review;

b) present documents and other materials relevant to the complaint;

c) challenge members of the National Council of Justice of the Republic of Belarus.

5. During the consideration of the complaint, members of the National Council of Justice of the Republic of Belarus may question the rapporteur, the complainant, and the judge whose decisions, actions, or inaction are being challenged.

6. The meeting of the National Council of Justice of the Republic of Belarus to examine the complaint is broadcast on the official online platforms of the National Council of Justice of the Republic of Belarus.

7. Based on the results of the consideration of the complaint, the National Council of Justice of the Republic of Belarus may either decide to endorse the decision of the

Disciplinary Panel of the National Council of Justice of the Republic of Belarus or adopt one of the decisions provided in part three of Article 41 of this Law.

Chapter 10. SPECIFICS OF EXERCISING POWERS RELATED TO GRANTING CONSENT FOR THE DETENTION OR ARREST OF A JUDGE

Article 43. Consideration of matters related to granting consent for the detention or arrest of a judge

1. A submission for the detention or arrest of a judge is made by the Prosecutor General of the Republic of Belarus or an authorised deputy.

2. The submission must be accompanied by criminal case materials containing sufficient information and evidence justifying the need for coercive measures against the judge.

3. The preliminary review and preparation of the matter concerning the detention or arrest of a judge are entrusted to the Disciplinary Panel of the National Council of Justice of the Republic of Belarus.

4. A decision to grant consent for the detention or arrest of a judge is made by the National Council of Justice of the Republic of Belarus based on the conclusion of the Disciplinary Panel of the National Council of Justice.

5. The matter of granting consent for the detention or arrest of a judge is considered by the National Council of Justice of the Republic of Belarus within three working days from the date the submission is made by the Prosecutor General of the Republic of Belarus.

Chapter 11. SPECIFICS OF EXERCISING POWERS RELATED TO THE PREPARATION OF PROPOSALS FOR FURTHER IMPROVEMENT OF LEGISLATION IN THE JUDICIAL AND LEGAL SPHERE

Article 44. Exercising powers related to preparing proposals for further improvement of legislation in the judicial and legal sphere

1. The National Council of Justice of the Republic of Belarus is entitled to submit proposals regarding the improvement of legislation on the judiciary, which are mandatory for consideration, to competent state authorities.

2. The National Council of Justice of the Republic of Belarus is entitled to provide opinions on draft regulatory acts related to the judicial system and the status of judges, which are subject to mandatory consideration by the government and parliament.

3. The National Council of Justice of the Republic of Belarus summarizes proposals from courts, judicial bodies, and institutions concerning legislation related to their status and functioning, the judicial system, and the status of judges.

4. Entities exercising the right of legislative initiative are obliged to forward draft regulatory acts related to the judicial system and the status of judges to the National Council of Justice of the Republic of Belarus for review.

Chapter 12. PROMOTION OF JUDGES TO HIGHER COURTS AND TRANSFER OF JUDGES TO COURTS OF THE SAME OR LOWER LEVEL

Article 45. Promotion of judges to higher courts, transfer of judges to courts of the same or lower level, and secondment of judges

1. Issues regarding the promotion of judges to higher courts and transfer of judges to courts of the same or lower level are considered by the National Council of Justice of the Republic of Belarus in accordance with the Law “On the Judiciary and the Status of Judges.”

2. The promotion of judges to higher courts or transfer to courts of the same level may be conducted on a competitive basis.

3. The transfer of judges to lower courts is carried out based on recommendations from the Personnel Panel.

4. Following the consideration of the matter, the National Council of Justice of the Republic of Belarus adopts a decision.

The decision regarding the promotion of a judge to a higher court or transfer to a court of the same or lower level must be substantiated and is adopted through an open vote by the members of the National Council of Justice of the Republic of Belarus.

5. Members of the National Council of Justice of the Republic of Belarus who are judges are prohibited from participating in competitions for promotion to higher courts or transfer to courts of the same level during their tenure and for six months after ceasing to be members of the National Council of Justice of the Republic of Belarus.

Article 46. Suspension of the powers of a judge, removal of a judge from office, and termination of resignation of a judge

1. Issues regarding the suspension of the powers of a judge, removal of a judge from office, and termination of resignation of a judge are considered by the National Council

of Justice of the Republic of Belarus in accordance with the Law “On the Judiciary and the Status of Judges.”

2. A decision to suspend the powers of a judge or remove a judge from office is made by the National Council of Justice of the Republic of Belarus based on the conclusion of the Disciplinary Panel of the National Council of Justice.

3. When terminating resignation of a judge, the National Council of Justice of the Republic of Belarus orders the cessation of lifetime monthly payments to the individual in compliance with the requirements of the Law “On the Judiciary and the Status of Judges.”

4. If the circumstances that led to the suspension of the powers of a judge, removal from office, or termination of resignation change, the National Council of Justice of the Republic of Belarus may adopt a decision to reverse these measures.

CHAPTER 13. FINAL PROVISIONS

Article 47. Entry into Force of the Law

1. This Law shall enter into force one month after the entry into force of the Law on the Judiciary and the Status of Judges.

Article 48. Peculiarities of Forming the First Composition of the National Council of Justice of the Republic of Belarus

1. The Government of the Republic of Belarus, within one month from the date this Law enters into force, establishes an organizational committee for the formation of the first composition of the National Council of Justice of the Republic of Belarus (hereinafter referred to as the "organisational committee").

2. The organisational committee consists of 6 members.

The Soim of the Republic of Belarus, the President of the Republic of Belarus, and the Government of the Republic of Belarus each appoint (elect) two members.

The composition of the organizational committee is approved by a resolution of the Government of the Republic of Belarus.

The organizational committee elects its chairperson and secretary from among its members.

3. The organizational committee performs the tasks of the Secretariat of the National Council of Justice of the Republic of Belarus, as outlined in Article 9 of this Law, regarding the formation of the first composition of the National Council of Justice of the Republic of Belarus.

To this end, within three months from the adoption of the decision to form the committee, the organizational committee:

- announces information about the competition to fill vacant positions of members of the National Council of Justice of the Republic of Belarus;

- accepts documents from those wishing to participate in the competitive selection, verifies the documents, and publishes on the website of the Government of the Republic of Belarus a list of candidates admitted to participate in the competition;

- ensures the conduct of congresses and conferences of the bodies responsible for appointing members of the National Council of Justice of the Republic of Belarus.

4. When forming the first composition of the National Council of Justice of the Republic of Belarus, a reduction in the quota of representation at the congress (conference) from the bodies specified in Parts 13–15 of Article 9 of this Law is allowed.

The quota may be determined by a decision of the organizational committee following consultations with representatives of the bodies specified in Parts 13–15 of Article 9 of this Law.

5. Decisions of the organizational committee are made at its meeting by a majority vote of the appointed members of the committee. Decisions and minutes of the meetings of the organizational committee are published on the website of the Government of the Republic of Belarus (except for information containing confidential data) within two days of the decision being made (or the committee meeting being held).